

GAZETTE OF INDIA
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 29th August, 2016

**SECURITIES CONTRACTS (REGULATION) (STOCK EXCHANGES AND
CLEARING CORPORATIONS) (THIRDAAMENDMENT) REGULATIONS, 2016**

No. SEBI/ LAD-NRO/GN/2016-17/011- In exercise of the powers conferred by section 31 of the Securities Contracts (Regulation) Act, 1956 read with sections 11 and 30 of the Securities and Exchange Board of India Act, 1992, the Securities and Exchange Board of India hereby makes the following regulations to further amend the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012, namely:—

1. These regulations may be called the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) (Third Amendment) Regulations, 2016.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2012,
 - i. for regulation 33, the following shall be substituted, namely,-

“Contribution to the Settlement Guarantee Fund

33.(1) The contribution to the Fund as specified in regulation 39 shall be made by the recognised stock exchange, the recognised clearing corporation and the clearing members, in the manner as may be specified by the Board from time to time.

(2) In case of shortfall in the Fund, the recognised clearing corporation and the recognised stock exchange shall replenish the Fund to the threshold level as may be specified by the Board from time to time.”

- ii. in regulation 39, in sub-regulation (8) the words “contribution and” shall be omitted.

**U. K. SINHA
CHAIRMAN
SECURITIES AND EXCHANGE BOARD OF INDIA**

Footnote:

1. The SC(R)(Stock Exchanges and Clearing Corporations) Regulations, 2012 were published in the Gazette of India on 20th June, 2012 vide F. No. LAD-NRO/GN/2012-13/07/13546.
2. The SC(R) (Stock Exchanges and Clearing Corporations) Regulations, 2012 were subsequently amended –
 - (a) on 2nd September, 2013 by the SC(R)(Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2013 vide No. LAD-NRO/GN/2013/14/21/6463.
 - (b) on 8th September, 2015 by the SC(R)(Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2015 vide No. LAD-NRO/GN/2015-16/016.
 - (c) on 11th January, 2016 by the SC(R)(Stock Exchanges and Clearing Corporations) (Amendment) Regulations, 2016 vide No. LAD-NRO/GN/2015-16/29.
 - (d) on 7th March, 2016 by the SC(R)(Stock Exchanges and Clearing Corporations) (Second Amendment) Regulations, 2016 vide No. LAD-NRO/GN/2015-16/037.